

STATE OF NEW YORK

8325--A

2025-2026 Regular Sessions

IN SENATE

June 2, 2025

Introduced by Sen. BYNOE -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law and the public health law, in relation to providing guidelines, corrective actions, and transparency, and to reconfigure the composition of committees of professional conduct within the office of professional medical conduct

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative intent. On May 15, 2025, Newsday published
2 "Broken Practice: Doctor misconduct on Long Island", a two-year inves-
3 tigation that found that forty-six doctors on Long Island were allowed
4 to practice freely for months or years despite criminal convictions
5 including fraud, sexual abuse and the illegal dispensing of opioids.

6 This legislature finds that the office of professional medical conduct
7 currently reviews complaints made against physicians to determine the
8 verity of allegations of professional misconduct. Yet there is currently
9 no uniform framework established in the law to outline specific penal-
10 ties or actions that could be taken following the determination that a
11 licensee had violated professional misconduct law. Therefore, this
12 legislature establishes a uniform set of legal guidelines for penalties
13 and actions which can be taken by any committee to provide a more
14 uniform framework for the provision of justice.

15 Currently, licensees offering to provide services for sexual favors,
16 or engaging in sexual impropriety or sexual contact are not prohibited
17 under the professional misconduct law. As such, this legislature finds
18 that such actions should be prohibited under the law.

19 Additionally, the legislature finds that to ensure a variety of opin-
20 ions and expertise on the committees which investigate allegations of
21 professional misconduct, to include one physician, and two lay members,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 one of whom shall hold a doctoral degree and are currently or have
2 previously taught medicine within an academic institution's department
3 of medicine or hold a master's in public health.

4 The legislature holds that to increase awareness of such office that
5 medical facilities should provide contact information and links to such
6 office's website available to the patients through printed forms in a
7 manner deemed fit by the commissioner of health.

8 Finally, to provide greater transparency to the operations of such
9 office, the legislature shall require final determinations of penalties
10 or actions against a licensee to be published on the office's website
11 and for notification to be provided to the source of the initial
12 complaint within ten days of the office making any final determinations.

13 § 2. Section 6530 of the education law is amended by adding three new
14 subdivisions 51, 52 and 53 to read as follows:

15 51. Sexual impropriety, including but not limited to verbal or phys-
16 ical behavior, gestures, or expressions that could be reasonably inter-
17 preted as sexual, disrespectful of patient privacy, or sexually demean-
18 ing to a patient.

19 52. Physical sexual contact between a licensee and patient, or any
20 examination of the breasts or genitals without appropriate consent from
21 a patient or such patient's surrogate.

22 53. For offering to provide practice-related services in exchange for
23 sexual favors.

24 § 3. The public health law is amended by adding a new section 230-f to
25 read as follows:

26 § 230-f. Guidelines for penalties and actions. Pursuant to section two
27 hundred thirty of this title, any penalty or action against a licensee
28 as determined by the office of professional medical conduct or any
29 committee thereof shall comply with the following maximum or minimum
30 guidelines for the issuance of penalties or actions associated with
31 professional misconduct pursuant to section sixty-five hundred thirty of
32 the education law or other violations under this section. The office of
33 professional medical conduct may use its discretion to make exemptions
34 to this section if an investigation finds there are unusual or extraor-
35 inary circumstances. Such maximum or minimum guidelines shall be as
36 follows:

37 1. For obtaining a license fraudulently, the maximum penalty shall be
38 revocation of a license and the minimum penalty shall be a reprimand
39 with a suspension of a license for up to two years. Any fine issued
40 shall be no less than ten thousand dollars.

41 2. For practicing the profession fraudulently or beyond its authorized
42 scope, the maximum penalty shall be revocation of a license, and the
43 minimum penalty shall be a reprimand with suspension of a license for up
44 to two years. Any fine issued shall be no less than ten thousand
45 dollars.

46 3. For practicing the profession with negligence on more than one
47 occasion, the maximum penalty shall be revocation of a license, and the
48 minimum penalty shall be suspension of a license for up to two years.
49 Any fine issued shall be no less than ten thousand dollars.

50 4. For practicing the profession with gross negligence on a particular
51 occasion, the maximum penalty shall be revocation of a license, and the
52 minimum penalty shall be a reprimand. Any fine issued shall be no less
53 than ten thousand dollars.

54 5. For practicing the profession with incompetence on more than one
55 occasion, the maximum penalty shall be revocation of a license, and the
56 minimum penalty shall be suspension of a license until the licensee

1 completes rehabilitation to the satisfaction of the board. Any fine
2 issued shall be no less than ten thousand dollars.

3 6. For practicing the profession with gross incompetence, the maximum
4 penalty shall be revocation of a license and the minimum penalty shall
5 be suspension of a license until the licensee completes rehabilitation
6 to the satisfaction of the board. Any fine issued shall be no less than
7 ten thousand dollars.

8 7. For practicing the profession while impaired by alcohol, drugs,
9 physical disability, or mental disability, the maximum penalty shall be
10 the revocation of a license, and the minimum penalty shall be suspension
11 of a license until the licensee completes rehabilitation to the satis-
12 faction of the board. Any fine issued shall be no more than five thou-
13 sand dollars.

14 8. For being a habitual abuser of alcohol, or being dependent on or a
15 habitual user of narcotics, barbiturates, amphetamines, hallucinogens,
16 or other drugs having similar effects, except for a licensee who is
17 maintained on an approved therapeutic regimen which does not impair the
18 ability to practice, or having a psychiatric condition which impairs the
19 licensee's ability to practice, the maximum penalty shall be the revoca-
20 tion of a license, and the minimum penalty shall be a suspension of a
21 license until the licensee completes rehabilitation to the satisfaction
22 of the board. Any fine issued shall be no less than ten thousand
23 dollars.

24 9. For being convicted of committing an act constituting a crime under
25 New York state law or federal law, the penalty shall be determined based
26 on the severity and classification of the crime the licensee had been
27 convicted of unless otherwise noted, and in accordance with the follow-
28 ing:

29 (a) For violations of the Americans with Disabilities Act, the maximum
30 penalty shall be revocation of a license, the minimum penalty shall be
31 the limitation of the license to a specified area or type of practice.
32 Any fines issued shall be no less than ten thousand dollars.

33 (b) If an individual is convicted for sexual abuse or harassment, then
34 the penalty shall be revocation of a license. Any fines issued shall be
35 no less than ten thousand dollars.

36 (c) For licensees who are convicted of illegal distribution of a
37 controlled substance, the maximum penalty shall be revocation of a
38 license, the minimum penalty shall be a reprimand and a suspension of a
39 license for up to three years. Any fines issued shall be no less than
40 ten thousand dollars.

41 10. For being convicted of committing an act constituting a crime
42 under the law of another jurisdiction and which, if committed within
43 this state, would have constituted a crime under New York state law,
44 discretion as to the penalties and actions taken shall be determined
45 based on the severity and classification of the crime the licensee has
46 been convicted of. If the licensee has had their medical license
47 revoked, suspended or has had other disciplinary action issued against
48 them in another jurisdiction then such disciplinary penalty or action
49 shall be equal or equivalent unless otherwise noted. If an individual
50 has been convicted for crimes related to sexual abuse or harassment,
51 then the penalty shall be revocation of a license. Any fines issued
52 shall be no less than ten thousand dollars.

53 11. For refusing to provide professional service to a person because
54 of such person's race, creed, color or national origin, the maximum
55 penalty shall be revocation of a license, and the minimum penalty shall

1 be a suspension of a license. Any fines issued shall be no less than
2 five thousand dollars and no more than ten thousand dollars.

3 12. For permitting, aiding or abetting an unlicensed person to perform
4 activities requiring a license, the maximum penalty shall be suspension
5 of a license for up to one year and the minimum penalty shall be a
6 reprimand. Any fines issued shall be no more than five thousand dollars
7 and no less than one thousand dollars.

8 13. For practicing the profession while the license is suspended or
9 inactive as defined in subdivision thirteen of section two hundred thir-
10 ty of this title, for violating any term of probation or condition or
11 limitation imposed on the licensee pursuant to section two hundred thir-
12 ty of this title, or for willfully failing to register or notify the
13 department of education of any change of name or mailing address, or, if
14 a professional service corporation, willfully failing to comply with
15 sections fifteen hundred three and fifteen hundred fourteen of the busi-
16 ness corporation law, or, if a university faculty practice corporation
17 willfully failing to comply with paragraphs (b), (c) and (d) of section
18 fifteen hundred three and section fifteen hundred fourteen of the busi-
19 ness corporation law, the maximum penalty shall be suspension of a
20 license for up to one year and the minimum penalty shall be a reprimand.
21 Any fine issued shall be no less than ten thousand dollars.

22 14. For a willful violation by a licensee of subdivision eleven of
23 section two hundred thirty of the public health law, the penalty shall
24 be revocation of a license. Any fine issued shall be no less than ten
25 thousand dollars.

26 15. For a violation of section two hundred thirty-nine of this article
27 by a professional, or for a violation of section twenty-eight hundred
28 three-d, twenty-eight hundred five-k, or subparagraph (ii) of paragraph
29 (h) of subdivision ten of section two hundred thirty of this chapter,
30 the maximum penalty shall be revocation of a license and the minimum
31 penalty shall be a reprimand. Any fine issued shall be no less than ten
32 thousand dollars.

33 16. For failure to comply with an order issued pursuant to subdivision
34 seven, paragraph (a) of subdivision ten, or subdivision seventeen of
35 section two hundred thirty of this title, the maximum penalty shall be
36 revocation of a license, and the minimum penalty shall be a written
37 reprimand. Any fine issued under a penalty or action under this subdivi-
38 sion shall be no less than one thousand dollars and no more than ten
39 thousand dollars.

40 17. For a willful or grossly negligent failure to comply with substan-
41 tial provisions of federal, state, or local laws, rules, or regulations
42 governing the practice of medicine, the maximum penalty shall be revoca-
43 tion of a license and the minimum penalty shall be suspension of a
44 license. Any fine issued shall be no less than ten thousand dollars.

45 18. For exercising undue influence on the patient, including the
46 promotion of the sale of services, goods, appliances, or drugs in such
47 manner as to exploit the patient for the financial gain of the licensee
48 or of a third party, the maximum penalty shall be suspension for up to
49 five years, the minimum penalty shall be a reprimand. Any fine issued
50 shall be no more than ten thousand dollars.

51 19. For directly or indirectly offering, giving, soliciting, or
52 receiving or agreeing to receive, any fee or other consideration to or
53 from a third party for the referral of a patient or in connection with
54 the performance of professional services the maximum penalty shall be
55 revocation of a license and the minimum penalty shall be a reprimand.
56 Any fines issued shall be no less than ten thousand dollars.

1 20. For permitting any person to share in the fees for professional
2 services, other than: a partner, employee, associate in a professional
3 firm or corporation, professional subcontractor or consultant authorized
4 to practice medicine, or a legally authorized trainee practicing under
5 the supervision of a licensee, the maximum penalty shall be revocation
6 of a license and the minimum penalty shall be a reprimand. Any fines
7 issued shall be no less than five thousand dollars.

8 21. For conduct in the practice of medicine which evidences moral
9 unfitness to practice medicine, the maximum penalty shall be revocation
10 of a license and the minimum penalty shall be a reprimand. Any fines
11 issued shall be no less than five thousand dollars.

12 22. For willfully making or filing a false report, or failing to file
13 a report required by law or by the department of health or the education
14 department, or willfully impeding or obstructing such filing, or induc-
15 ing another person to do so, the maximum penalty shall be revocation of
16 a license, the minimum penalty shall be a reprimand. Any fines issued
17 shall be no less than ten thousand dollars.

18 23. For failing to make available to a patient, upon request, copies
19 of documents in the possession or under the control of the licensee
20 which have been prepared for and paid for by the patient or client, the
21 maximum penalty shall be the suspension of a license for up to six
22 months, and the minimum penalty shall be a written reprimand. Any fine
23 issued shall be no more than ten thousand dollars.

24 24. For revealing of personally identifiable facts, data, or informa-
25 tion obtained in a professional capacity without the prior consent of
26 the patient, except as authorized or required by law, the maximum penal-
27 ty shall be suspension of a license, the minimum penalty shall be a
28 reprimand. Any fine issued shall be no less than one thousand dollars
29 and no more than ten thousand dollars.

30 25. For practicing or offering to practice beyond the scope permitted
31 by law, or accepting and performing professional responsibilities which
32 the licensee knows or has reason to know that such licensee is not
33 competent to perform, or performing without adequate supervision profes-
34 sional services which the licensee is authorized to perform only under
35 the supervision of a licensed professional, except in an emergency situ-
36 ation where a person's life or health is in danger, the maximum penalty
37 shall be revocation of a license, the minimum penalty shall be a repri-
38 mand. Any fines issued shall be no less than ten thousand dollars.

39 26. For delegating professional responsibilities to a person when the
40 licensee delegating such responsibilities knows or has reason to know
41 that such person is not qualified, by training, by experience, or by
42 licensure, to perform them, the maximum penalty shall be revocation of a
43 license, the minimum penalty shall be a reprimand. Any fines issued
44 shall be no less than ten thousand dollars.

45 27. For performing professional services which have not been duly
46 authorized by the patient or his or her legal representative, the maxi-
47 mum penalty shall be revocation of a license, the minimum penalty shall
48 be a reprimand. Any fines issued shall be no less than ten thousand
49 dollars.

50 28. For advertising or soliciting for patronage that is not in the
51 public interest the maximum penalty shall be a reprimand with a tempo-
52 rary suspension of a license, the minimum penalty shall be a reprimand.
53 Any fines issued shall be no more than five thousand dollars.

54 29. For failing to respond within thirty days to written communi-
55 cations from the department and to make available any relevant records
56 with respect to an inquiry or complaint about the licensee's profes-

1 sional misconduct, the maximum penalty shall be revocation of a license,
2 the minimum penalty shall be a reprimand. Any fines issued shall be no
3 more than five thousand dollars.

4 30. For violating any term of probation or condition or limitation
5 imposed on the licensee pursuant to section two hundred thirty of this
6 title, the maximum penalty shall be revocation of a license, and the
7 minimum penalty shall be a limitation on registration or issuance of any
8 further license. Any fines issued shall be no less than ten thousand
9 dollars.

10 31. For abandoning or neglecting a patient under and in need of imme-
11 diat professional care, the maximum penalty shall be revocation of a
12 license, and the minimum penalty shall be a reprimand. Any fines issued
13 shall be no more than ten thousand dollars.

14 32. For willfully harassing, abusing, or intimidating a patient,
15 either physically or verbally, the maximum penalty shall be revocation
16 of a license, and the minimum penalty shall be a reprimand. Any fines
17 issued shall be no more than ten thousand dollars.

18 33. For failing to maintain a record for each patient which accurately
19 reflects the evaluation and treatment of the patient, or for not retain-
20 ing all patient records for at least six years unless otherwise required
21 by law, the maximum penalty shall be suspension of a license, and the
22 minimum penalty shall be a reprimand. Any fines issued shall be no less
23 than one thousand dollars and no more than ten thousand dollars.

24 34. For failing to exercise appropriate supervision over persons who
25 are authorized to practice only under the supervision of the licensee,
26 the maximum penalty shall be suspension of a license for up to one year,
27 and the minimum penalty shall be a reprimand. Any fines issued shall be
28 no more than ten thousand dollars.

29 35. For guaranteeing that satisfaction or a cure will result from the
30 performance of professional services, the penalty shall be a reprimand.

31 36. For ordering of excessive tests, treatment, or use of treatment
32 facilities not warranted by the condition of the patient, the maximum
33 penalty shall be revocation of a license, and the minimum penalty shall
34 be reprimand. Any fines issued shall be no more than ten thousand
35 dollars.

36 37. For claiming or using any secret or special method of treatment
37 which the licensee refused to divulge to the department of health, the
38 maximum penalty shall be revocation of a license, and the minimum pen-
39 alty shall be reprimand. Any fines issued shall be no more than ten thou-
40 sand dollars.

41 38. For failing to wear an identifying badge, which shall be conspicu-
42 ously displayed and legible, indicating the practitioner's name and
43 professional title authorized pursuant to title eight of the education
44 law, while practicing as an employee or operator of a hospital, clinic,
45 group practice or multi-professional facility, or at a commercial estab-
46 lishment offering health services to the public, the penalty shall be a
47 reprimand. Any fines issued shall be no more than one thousand dollars.

48 39. For entering into an arrangement or agreement with a pharmacy for
49 the compounding and/or dispensing of coded or specially marked
50 prescriptions, the maximum penalty shall be revocation of a license, and
51 the minimum penalty shall be a reprimand. Any fine issued shall be no
52 less than five thousand dollars.

53 40. For failing to post conspicuously at the site of such practice the
54 name and licensure field of all of the principal professional licensees
55 engaged in the practice at that site, the maximum penalty shall be

1 suspension of a license and the minimum penalty shall be a reprimand.
2 Any fines issued shall be no more than ten thousand dollars.

3 41. For failing to provide access by qualified persons to patient
4 information in accordance with the standards set forth in section eigh-
5 teen of this chapter, the maximum penalty shall be suspension of a
6 license and the minimum penalty shall be a reprimand. Any fines issued
7 shall be no less than one thousand dollars and no more than ten thousand
8 dollars.

9 42. For knowingly or willfully performing a complete or partial autop-
10 sy on a deceased person without lawful authority, the maximum penalty
11 shall be a suspension of a license and the minimum penalty shall be a
12 reprimand. Any fines issued shall be no less than one thousand dollars
13 and no more than ten thousand dollars.

14 43. For failing to comply with a signed agreement to practice medicine
15 in New York state in an area designated by the commissioner of education
16 as having a shortage of physicians or refusing to repay medical educa-
17 tion costs in lieu of such required service, or failing to comply with
18 any provision of a written agreement with the state or any municipality
19 within which the licensee has agreed to provide medical service, or
20 refusing to repay funds in lieu of such service as consideration of
21 awards made by the state or any municipality thereof for the licensee's
22 professional education in medicine, or failing to comply with any agree-
23 ment entered into to aid the licensee's medical education, the maximum
24 penalty shall be revocation of a license and the minimum penalty shall
25 be a reprimand. Any fines issued shall be no less than five thousand
26 dollars and no more than ten thousand dollars.

27 44. For failing to complete forms or reports required for the
28 reimbursement of a patient by a third party, the maximum penalty shall
29 be revocation of a license and the minimum penalty shall be a reprimand.
30 Any fines issued shall be no less than five thousand dollars.

31 45. For, in the practice of psychiatry, (a) any physical contact of a
32 sexual nature between a licensee and a patient except the use of films
33 or other audiovisual aids with individuals or groups in the development
34 of appropriate responses to overcome sexual dysfunction, or (b) in ther-
35 apy groups, activities which promote explicit physical sexual contact
36 between group members during sessions, the maximum penalty shall be
37 revocation of a license and the minimum penalty shall be a reprimand.
38 Any fines issued shall be no less than ten thousand dollars.

39 46. For, in the practice of ophthalmology, failing to provide a
40 patient, upon request, with the patient's prescription including the
41 name, address, and signature of the prescriber and the date of the
42 prescription, the maximum penalty shall be revocation of a license and
43 the minimum penalty shall be suspension of a license for up to six
44 months. Any fines issued shall be no less than ten thousand dollars.

45 47. For a violation of section two hundred thirty-nine of this article
46 by a professional, the maximum penalty shall be a limitation on regis-
47 tration or issuance of any further license and the minimum penalty shall
48 be a requirement that a licensee pursue a course of education or train-
49 ing. Any fines issued shall be no more than two thousand dollars.

50 48. For failure to use scientifically accepted barrier precautions and
51 infection control practices as established by the department pursuant to
52 section two hundred thirty-a of this title as added by chapter 786 of
53 the laws of 1992, the maximum penalty shall be revocation of a license
54 and the minimum penalty shall be a reprimand. Any fines issued shall be
55 no less than ten thousand dollars.

1 49. For a violation of section two hundred thirty-d of this title or
2 regulations enacted thereunder, the maximum penalty shall be the suspen-
3 sion of a license and the minimum penalty shall be a reprimand. Any
4 fin

5 50. For, except for good cause shown, failing to provide within one
6 day any relevant records or other information requested by the state or
7 local department of health with respect to an inquiry into a report of a
8 communicable disease as defined in the state sanitary code, or HIV/AIDS,
9 the maximum penalty shall be an annulment of license or registration and
10 the minimum penalty shall be a reprimand. Any fines issued shall be no
11 more than two thousand dollars.

12 51. For performing a pelvic examination or supervising the performance
13 of a pelvic examination in violation of subdivision seven of section
14 twenty-five hundred four of this chapter, the maximum penalty shall be a
15 suspension of a license, the minimum penalty shall be a reprimand. Any
16 fin

17 52. For engaging in sexual impropriety, the penalty shall be revoca-
18 tion of a license. Any fine issued shall be no less than ten thousand
19 dollars.

20 53. For physical sexual contact between a licensee and patient, or any
21 examination of the breasts or genitals without appropriate consent from
22 a parent or guardian, the penalty shall be revocation of a license. Any
23 fine issued shall be no less than ten thousand dollars.

24 54. For offering to provide practice-related services in exchange for
25 sexual favors, the penalty shall be revocation of a license. Any fine
26 issued shall be no less than ten thousand dollars.

27 § 4. Subdivisions 1 and 6 of section 230 of the public health law,
28 subdivision 1 as amended by chapter 537 of the laws of 1998 and subdivi-
29 sion 6 as amended by chapter 266 of the laws of 1986, are amended to
30 read as follows:

31 1. A state board for professional medical conduct is hereby created in
32 the department in matters of professional misconduct as defined in
33 sections sixty-five hundred thirty and sixty-five hundred thirty-one of
34 the education law. Its physician members shall be appointed by the
35 commissioner at least eighty-five percent of whom shall be from among
36 nominations submitted by the medical society of the state of New York,
37 the New York state osteopathic society, the New York academy of medi-
38 cine, county medical societies, statewide specialty societies recognized
39 by the council of medical specialty societies, and the hospital associ-
40 ation of New York state. Its lay members shall be appointed by the
41 commissioner with the approval of the governor. The board of regents
42 shall also appoint twenty percent of the members of the board. Not less
43 than [~~sixty-seven~~] thirty-three percent of the members appointed by the
44 board of regents shall be physicians. Not less than eighty-five percent
45 of the physician members appointed by the board of regents shall be from
46 among nominations submitted by the medical society of the state of New
47 York, the New York state osteopathic society, the New York academy of
48 medicine, county medical societies, statewide medical societies recog-
49 nized by the council of medical specialty societies, and the hospital
50 association of New York state. Any failure to meet the percentage thres-
51 holds stated in this subdivision shall not be grounds for invalidating
52 any action by or on authority of the board for professional medical
53 conduct or a committee or a member thereof. The board for professional
54 medical conduct shall consist of not fewer than [~~eighteen~~] seven physi-
55 cians licensed in the state for at least five years, two of whom shall
56 be doctors of osteopathy, and not fewer than two of whom shall be physi-

1 cians who dedicate a significant portion of their practice to the use of
2 non-conventional medical treatments who may be nominated by New York
3 state medical associations dedicated to the advancement of such treat-
4 ments, at least one of whom shall have expertise in palliative care[
5 ~~and not fewer than seven lay members~~]. All physician members shall not
6 have any disciplinary actions or penalties found against them pursuant
7 to this section. The board shall include no fewer than eighteen lay
8 members, comprising individuals who possess a doctoral degree, have
9 never obtained a medical degree, and are currently or have formerly
10 engaged in teaching medicine within the department of medicine at an
11 academic institution. Alternatively, such lay members may hold a
12 master's degree in public health. An executive secretary shall be
13 appointed by the chairperson and shall be a licensed physician. Such
14 executive secretary shall not be a member of the board, shall hold
15 office at the pleasure of, and shall have the powers and duties assigned
16 and the annual salary fixed by, the chairperson. The chairperson shall
17 also assign such secretaries or other persons to the board as are neces-
18 sary.

19 6. Any committee on professional conduct appointed pursuant to the
20 provisions of this section shall consist of [~~two physicians~~] one physi-
21 cian and [~~one~~] two lay [~~member~~] members, one of whom shall hold a
22 doctoral degree and are currently or have formerly engaged in teaching
23 medicine within the department of medicine at an academic institution or
24 hold a master's degree in public health.

25 § 5. Subdivision 7 of section 230 of the public health law is amended
26 by adding a new paragraph (d) to read as follows:

27 (d) A licensee undergoing disciplinary proceedings by committee on
28 professional conduct shall disclose to the committee if they hold a
29 license to practice medicine in another jurisdiction outside of the
30 state of New York. If the licensee holds a license to practice medicine
31 in any jurisdiction outside of the state of New York the committee on
32 professional conduct shall review the licensee's record in those juris-
33 dictions to determine if the licensee has been subject to disciplinary
34 proceedings in any other state, territory or jurisdiction where they
35 were licensed to practice medicine and determine what was the outcome of
36 such disciplinary proceedings.

37 § 6. Paragraphs (b) and (g) of subdivision 10 of section 230 of the
38 public health law, paragraph (b) as amended by chapter 606 of the laws
39 of 1991 and paragraph (g) as amended by chapter 477 of the laws of 2008,
40 are amended to read as follows:

41 (b) Charges. The charges shall state the substance of the alleged
42 professional misconduct and shall state clearly and concisely the mate-
43 rial facts but not the evidence by which the charges are to be proved.
44 Charges filed against a licensee shall correspond to the prescribed set
45 of penalties and actions provided in section two hundred thirty-f of
46 this title.

47 (g) Results of hearing. The committee shall make (1) findings of fact,
48 (2) conclusions concerning the charges sustained or dismissed, and (3) a
49 determination regarding charges sustained or dismissed, and in the event
50 any of the charges have been sustained, of the penalty to be imposed or
51 appropriate action to be taken and the reasons for the determination.
52 Any penalty imposed or action to be taken must correspond to the guide-
53 lines provided in section two hundred thirty-f of this title. For the
54 committee to make a conclusion sustaining a charge, or determining a
55 penalty or the appropriate action to be taken, two members of the
56 committee must vote for such a conclusion or determination. The commit-

tee shall issue an order based on its determination. The committee's findings, conclusions, determinations and order shall become public upon issuance. However, if the time to request a review of the committee's determination has not yet expired, or if the review has been requested but no determination as a result of the review has been issued, such publication shall include a statement advising that the licensee or the department may request a review of the committee's determination. No such statement is required if (a) the time to request such review has expired without the filing of such request by either of the parties, or (b) the licensee and the department both affirmatively decline to request review of the committee's determination or fail to perfect such review. In the event any or all such charges are dismissed, such dismissal shall be made public within two business days.

§ 7. Paragraph (h) of subdivision 11 of section 230 of the public health law, as added by chapter 203 of the laws of 2020, is amended to read as follows:

(h) (i) The office of professional medical conduct and the department shall post on ~~[its website]~~ their websites information on patients' rights and reporting options under this subdivision regarding professional misconduct, which shall specifically include information on reporting instances of misconduct involving sexual harassment and assault. All physicians' practice settings shall conspicuously post signage, visible to their patients, directing such patients to the office of professional medical conduct's website for information about their rights and how to report professional misconduct. All signage posted shall be no smaller than eight and a half inches by eleven inches in size.

(ii) Medical facilities shall provide all pertinent contact information to the office of professional medical conduct to patients in a self-attestation form, including access to their website through a QR code or link as deemed appropriate by the commissioner.

(iii) Within ten days of any final determination applying a penalty or action against a licensee the office of professional medical conduct and the department shall post on their websites the name, medical license number, and the penalties or actions imposed for any licensee determined to have committed a violation of professional misconduct.

(iv) If the source of complaint that instigated the investigation provided contact information included an electronic mail address in their initial complaint, then the office of professional medical conduct shall inform the source of the complaint through electronic mail of the final determination made in reference to the complaint within ten days.

§ 8. Subdivision 11 of section 230 of the public health law is amended by adding a new paragraph (i) to read as follows:

(i) Any licensee who is indicted in another jurisdiction for a criminal offense or is arrested pursuant to probable or reasonable cause, or where it has been determined by a professional disciplinary agency that there is sufficient evidence to conduct a review of such licensee, shall notify the office of professional medical conduct of such action within forty-eight hours.

§ 9. This act shall take effect on the one hundred eightieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.